

Agency argued that, on their face, the safety benefits of an off-duty 30-minute break requirement applied to short-haul operations as well as long-haul. The D.C. Circuit Court of Appeals, however, found that applying the 30-minute break requirement to all drivers despite the clear distinctions between short-haul and long-haul operations was not justified in the record.¹⁵ The Agency has received no new evidence to compel a different finding.

Moreover, there is no safety basis for expanding the definition of short-haul but continuing to require a 30-minute break for the subset of short-haul CDL drivers who operate between 100 and 150 air miles, or who drive between the 12th and 14th hour of coming on duty. To the extent that the debate and comments about the safety impact of relieving this group of drivers of the need to comply with the 30-minute break provision lingers, FMCSA believes it is best resolved below in the Agency's decision concerning changes to the 30-minute break.

The changes adopted in this final rule result in the break being required after 8 consecutive hours of driving time, rather than 8 hours after coming on-duty. That change alone would make the 30-minute break inapplicable in nearly all short-haul operations in that they would not drive 8 consecutive hours without having a break of at least 30 minutes from the driving task.

FMCSA reviewed the Blanco study and notes that it found that any type of break (both off-duty, and on-duty not driving) was beneficial to the driver.¹⁶ Furthermore, it has been demonstrated in multiple research efforts that time on task is a leading contributor to driver fatigue. The requirement for a break after 8 hours of consecutive driving time addresses this concern more adequately than requiring a break after 8 hours of coming on-duty, and short-haul drivers have frequent breaks from driving throughout the day. Therefore, FMCSA disagrees with the commenters who stated that allowing short-haul to be excepted from the requirement would have an adverse impact on safety and continues to except short-haul drivers from the 30-minute break requirement despite the extension of the duty day to 14 hours.

Comments about the Relationship Between Changes to the Short-Haul Exception, Adverse Driving Conditions

¹⁵ *American Trucking Ass'n v. FMCSA*, 724 F.3d 243, 253 (D.C. Cir. 2013).

¹⁶ "The Impact of Driving, Non-Driving Work, and Rest Breaks on Driving Performance in Commercial Motor Vehicle Operations." Blanco, et al. (2011). Available in the docket for this rulemaking.

Exception and ELD Mandate. CVSA and Schneider National Carriers, Inc. stated that short-haul carriers using the proposed exception without using an ELD should not be eligible for workday extensions, like that granted for adverse driving conditions. The commenters reasoned that short-haul drivers would be familiar with the routes and weather in their operating territory and would be able to abuse the program if allowed to claim an extra 2 hours of driving time. A few commenters, including the Trucking Alliance, U.S. Chamber of Commerce, industry associations, and motor carriers, stated FMCSA should require ELDs regardless of the distance traveled.

TruckerNation suggested that FMCSA include clear regulatory language explaining that short-haul operators are exempt from the ELD mandate and are only required to prepare and maintain time cards. The Trucking Alliance suggested harmonization between the interstate CDL short-haul operations exception and the interstate non-CDL short-haul operations. An industry association developed a "Daily Driver" concept as an alternative to the short-haul exception and suggested specific language.

FMCSA Response: FMCSA believes that the revised short-haul exception adopted today maintains safety while providing motor carriers and drivers greater flexibility. The Agency is not persuaded that various alternatives suggested by commenters would achieve that goal. Requiring ELDs for any subgroup of the short-haul carriers would essentially negate the short-haul exception because the daily preparation of RODS would make the regulatory scheme for short-haul operations largely the same as other operations. The extension of the workday from 12 to 14 hours for returning to the original work reporting location without increasing the existing 11 hours of driving time will put short-haul operations on essentially the same footing as long-haul operations with the distinction being that they must return to the normal work reporting location. Increasing the 100 air-mile radius distance to 150 air-miles will allow short-haul drivers greater flexibility. Together, these provisions will reduce potential pressure on drivers for timely completion of their duty day.

Drivers who normally operate under the short-haul exception but occasionally find it necessary to exceed those limits can already drive within a 14-hour window for up to 8 days in any 30-consecutive day period without ELDs, provided they utilize paper RODS, or for more than 8 days in any

30-day consecutive period with an ELD. Whether to remain within or exceed the short-haul limits is strictly a business decision on the part of the carrier, and the Agency has not identified safety issues associated with the use of either of these options.

The NPRM did not propose to harmonize the short-haul rules for CDL and non-CDL drivers (§ 395.1(e)(1) and (2), respectively) concerning the allowance of a 16-hour window up to 2 days in a 7 consecutive day period for non-CDL holders. The Agency has not witnessed a demand for that level of flexibility since implementing the ELD mandate either in the form of requests for guidance or clarifications, or applications for exemptions. Therefore, the Agency did not propose such a change in the NPRM and considers the matter to be beyond the scope of this rulemaking.

Commenters Suggesting Industry-Specific Exceptions. A few trade groups requested that FMCSA allow industry-specific exceptions for certain short-haul operations, including for hazardous materials, concrete pumps, construction vehicles, and waste and recycling. The National Lumber and Building Material Dealers Association urged FMCSA to provide the lumber and building material industry a short-term ELD exception stating that many of their members use short-term rentals of 30 days or less to meet high demand periods or instances where vehicles have been taken out of operation for repairs or service. The American Farm Bureau Federation suggested allowing drivers hauling live animals and agriculture to rest "at any point during their trip without counting this rest time against their HOS allotments and allowing drivers to complete their trip, regardless of HOS requirements, if they come within 150 air-miles of their delivery point."

The National Private Truck Council, Inc. suggested requiring drivers to document their adherence to the 150 air-mile radius and 14-hour time requirements through GPS telematics, paper log, timecard notation, or some equivalent means. The American Fuel and Petrochemical Manufacturers asked for additional information from FMCSA on the potential impacts of the proposed short-haul exception on recordkeeping requirements, including the current 8-in-30 exception.

FMCSA Response: The motor carrier industry is diverse. As noted above the Agency has granted multiple exemptions for certain industry segments and there are various statutory and regulatory exceptions for several industry segments. Many of the

commenters cited the exemptions and exceptions. While the exemptions granted were for certain industry segments, the exemptions generally fall within the 150 air-mile distance and/or 14-hour time constraint, such that this final rule addresses the issue in general terms rather than specific industry segments. Also, given that the Agency did not propose specific industry carve-outs in the NPRM, considering such regulatory exemptions is outside of the scope of this rulemaking.

The requirements for applying for an exemption are provided in 49 CFR part 381 subpart C of the FMCSRs. After receiving an application for exception from the FMCSRs, the Agency will publish a notice in the **Federal Register** as required by § 381.315 and request public comment on whether the Agency should grant the request. FMCSA cannot grant an exemption unless it would likely achieve a level of safety equivalent to that achieved by complying with the rule from which an exception is sought.

In recent years, the Agency has received numerous requests for exemptions related to the short-haul provisions; several of these requests for exemptions have been granted (available at www.fmcsa.dot.gov/exemptions), while others have been denied.

FMCSA did not propose or consider new alternative means for motor carriers to document short-haul drivers' hours under the revised short-haul exception, and is not adding any new recordkeeping requirements at this time. Furthermore, the changes to the short-haul provisions in this final rule in no way relieve carriers and drivers of the responsibility for complying with the current recordkeeping requirements found in § 395.1(e)(1)(v), which are consistent with 6-month recordkeeping requirements for other records. See, e.g., § 395.8(k)(1) (requiring retention of RODS and supporting documents for 6 months); § 395.22(i) (requiring motor carriers to retain for 6 months a backup copy of ELD records).

4. Adverse Driving Conditions

NPRM. The Agency proposed allowing drivers encountering adverse driving conditions a driving window of up to 16 hours (for property carriers) within which to complete up to 13 hours of driving, or a duty period of up to 17 hours (for passenger carriers) within which to complete up to 12 hours of driving.

FMCSA also sought additional information and data on the impacts of changing the adverse driving conditions provision, in part to assess its potential costs and benefits. Specifically:

- Would this change cause drivers to travel farther in adverse driving conditions?
- Would this change drivers' behavior when encountering adverse driving conditions? How so?
- Understanding adverse driving conditions cannot be predicted, would drivers utilize this provision more often after this change?

Additionally, FMCSA requested public comment about potential modifications to the definition of "adverse driving conditions." Specifically, the Agency requested input on the suggestion that knowledge of the existence of adverse driving conditions should rest with the driver rather than the dispatcher. Alternatively, FMCSA asked whether the requirement for lack of advance knowledge at the time of dispatch should be eliminated, and whether the current definition of "adverse driving conditions" should be modified to address other circumstances.

Commenters Supporting an Extended Driving Window. The changes proposed in the NPRM would apply to drivers of both property-carrying CMVs, normally subject to a 14-hour driving window, and passenger-carrying CMVs, normally subject to a driving window of 15 non-consecutive hours.

Numerous commenters, including OOIDA, CVSA, the U.S. Chamber of Commerce, ABA, IBT, motor carriers, industry associations, and individuals expressed support for the proposed adverse driving conditions provision. Many individuals and drivers stated that the extension would relieve the pressure, stress, and fatigue on drivers. Most commenters reasoned that granting drivers more flexibility would improve road safety.

Some commenters argued that road conditions are not always accurately reflected in weather radar maps or other technologies, so drivers should have the flexibility and discretion to determine when it is safe to drive. The California Highway Patrol said the provision would allow driving at a reduced speed or delay operations while in adverse driving conditions, which may reduce the risk of crashes and improve road safety. Keep Truckin, Inc. based its support on anonymized and aggregated data of daily traffic patterns and speed fluctuations in Washington, DC and Atlanta, Georgia. An industry association said extending the driving window for adverse driving conditions would greatly benefit the delivery of farm supplies.

While supporting the proposal, OOIDA, ABA, and the United Motorcoach Association expressed

concern that the current adverse driving condition rules are not enforced consistently. The U.S. Chamber of Commerce and several industry associations said their members rarely use the exception, although the expansion would be helpful in extreme conditions.

FMCSA Response: FMCSA agrees that by adding time to the duty day for this exception, drivers may reduce their speed or delay operations when they experience unanticipated adverse driving conditions.

FMCSA agrees that radar and technology may not be entirely accurate and thus leaves the driver/dispatcher discretion in this final rule. FMCSA is not aware of any issues with enforcement of or compliance with the adverse driving conditions exception.

Commenters Requesting Additional Flexibility for Adverse Driving Conditions. Many commenters stated that the proposal did not go far enough. Among their comments:

- The provision should include unforeseen traffic conditions, such as emergency road repairs, congestion, and traffic accidents to allow drivers to compensate for ever worsening traffic congestion and infrastructure problems.

- Drivers should be allowed to decide how to respond to road conditions.
- The proposed changes to the extended driving window were not sufficient.

A few industry associations, motor carriers, and individual commenters argued that drivers should have more discretion over the hours in which they drive in potentially adverse driving conditions and that this provision did not grant enough flexibility to drivers.

TruckerNation stated that increased clarity and supporting guidance is needed, asking how a driver would be required to document the use of this provision on RODS to enable its increased and proper use. Many industry associations and individuals also commented that the current definition of "adverse driving conditions" should be clarified. Several commenters asked that the definition be expanded to address detention time or concerns specific to various sectors of the industry.

FMCSA Response: This final rule modifies the adverse driving condition exception to allow extension of the driving window by up to 2 hours, consistent with the 2-hour extension of driving time permitted under the current regulations. Though some commenters argued for an expansion of the current definition of "adverse driving conditions" to include circumstances such as unforeseen

traffic-related conditions, a close look at the definition shows that these road conditions are already covered. The HOS rules currently define “adverse driving conditions” as “snow, sleet, fog, other adverse weather conditions, a highway covered with snow or ice, or unusual road and traffic conditions, none of which were apparent based on information known to the person dispatching the run at the time it was begun.” The definition specifically refers to “unusual road and traffic conditions” which would cover most of the concerns mentioned by commenters. FMCSA does not believe it is necessary to further expound on the traffic conditions, as they are generally covered. However, the definition is modified for clarity and to recognize that the adverse driving conditions exception might apply based on knowledge of a driver (in addition to the dispatcher) under certain circumstances.

Commenters Opposed to Additional Flexibility for Adverse Driving Conditions. Some commenters opposed the extension of the driving window. They said that:

- The extension would encourage drivers to continue driving when conditions are poor.
- Dispatchers and drivers would extend the day without any adverse driving conditions or otherwise abuse the provision to get around a violation.
- This provision would cause an enforcement problem.

Several commenters, including IIHS, AASM, Senator Murray, and Transportation Trades Department, AFL-CIO, argued that the proposal would worsen driver fatigue. Advocates warned that extending the driving window enables driving later in the duty period, which research has associated with increases in crash risk, stating that FMCSA provided no analysis of that risk. IIHS cited studies on the safety and health consequences for drivers of disrupted circadian rhythms. Congressman DeFazio warned that the proposed rule would significantly increase on-duty time.

The Trucking Alliance opposed this provision, saying that the definition of “adverse driving conditions” is unclear, allowing drivers to exploit the exception and use it to extend their driving window every day. Conversely, the Kentucky Driver’s Association commented that, because the proposed rule could be abused to pressure drivers to drive beyond the normal 14-hour cap, it should be limited to “verifiable” events.

Advocates stated that FMCSA’s comparisons of this proposal with duty

period extensions permitted by the Federal Aviation Administration (FAA) and the Federal Railroad Administration (FRA) ignore the regulatory and operational differences among these Administrations and do not include any of the FAA’s or FRA’s limitations or additional requirements, nor has FMCSA performed any analysis to indicate that such comparisons are correct and meaningful.

FMCSA Response: FMCSA acknowledges that the proposal could allow drivers who experience adverse driving conditions to operate later into the duty day. The Agency also acknowledges that parallels with the airline and railroad industries are not exact. However, this change would create an incentive for drivers to drive more slowly or take a break from driving during adverse driving conditions, given that, as a result of this change, they will have up to 2 additional hours to either complete their run or to reach a safe location without exceeding the maximum daily driving windows. Additionally, FMCSA notes that surveys by two major trade associations demonstrate that the adverse-driving-conditions exception is not frequently used. Although changes intended to clarify the definition and improve flexibility may result in an increase in the use of the exception, there is little reason to expect that either the increase in use (or its potential abuse) will be significant.

FMCSA also disagrees that this change would increase enforcement problems. Drivers relying on the adverse driving conditions exception would routinely annotate their RODS to avoid an HOS violation; consistent with current practice, a law enforcement officer could investigate the merits of the claimed exception.

Commenters Discussing the Impact on VMT. Several commenters, including OOIDA and many other industry associations, argued that this provision would cause drivers to drive more safely, not greater distances, in adverse driving conditions. Currently drivers may drive up to 2 additional hours but they may be pressured to complete driving within the 14-hour window. The expansion of the driving window would enable them to drive more cautiously.

Conversely, AASM argued that the provision would cause drivers to drive longer distances. They argued that the assumption that drivers would reduce speed or delay operations during adverse driving conditions is not supported by scientific study. An individual argued that this provision will cause drivers to travel farther distances. ABA and an industry

association said that predicting the effect of the provision on travel distance is impossible.

FMCSA Response: This rule would not allow an increase in driving time, but it would increase the driving window from 14 to 16 hours when an adverse driving condition is encountered. FMCSA asked whether the extension of the driving window in the event of adverse conditions will result in an increase VMT. No commenter provided responsive data, and none may exist. Ultimately, each adverse driving condition will create a unique set of unpredictable circumstances that drivers and motor carriers will react to—not plan for. Accordingly, motor carriers will not be able to plan for additional deliveries, trips, or VMT, and the final rule does not quantify the impact of these driving changes on VMT. The FMCSA believes that any increase in VMT will be negligible because the total amount of driving time remains unchanged by this rule.

Comments About the Impact of the Exception on Driver Behavior. The NPRM asked whether the proposed rule would change drivers’ behavior upon encountering adverse driving conditions. Multiple commenters, including OOIDA, ABA, IBT, other industry associations, and motor carriers said the provision would improve safety by allowing drivers the flexibility to find a safe place to park and avoid adverse driving conditions. However, the NSC cited research and studies arguing that the longer an individual is awake, the higher the likelihood of safety-critical mistakes.

Advocates warned that abuse of the proposed exception would likely increase because carriers could coerce drivers to complete trips when conditions are adverse or because drivers could adjust their evaluation of the risk and continue to drive despite the opportunity to use the exception to stop. Either way, Advocates said FMCSA provided no analysis of these possibilities and their effect on safety.

Other commenters, including Western States Trucking Association and Sysco Corporation, said that the provision will not change driver behavior.

FMCSA Response: FMCSA agrees with commenters that it is hard to predict, on an aggregate level, what behaviors may change. However, trade association surveys suggest that this exception is not frequently used. FMCSA does not believe the level of use or abuse will change significantly because of this rulemaking.

Nevertheless, FMCSA agrees with commenters that the additional flexibility provided by the revised

exception will assist drivers in avoiding perilous conditions. FMCSA emphasizes that this change will not increase the driving time available during adverse driving conditions. By increasing duty time without increasing driving time, this change will provide the drivers with more non-driving options to safely respond to an adverse driving condition.

FMCSA does not believe that changes to the adverse driving conditions exception will mean that drivers are awake longer. The studies raised by commenters did not look at workdays with opportunities for rest or sleep in them. Additionally, as pointed out by OOIDA, ABA, IBT, other industry associations, and motor carriers, drivers may utilize the additional duty time provided by this change to take a break from driving that they may not have taken otherwise.

Comments About the Frequency of Adverse Conditions. The NPRM asked drivers whether they expected to use the proposed exception more often. Many commenters predicted that drivers would use the exception more often, especially if the definition were clarified.

The U.S. Chamber of Commerce, however, does not anticipate increased use because its motor carrier members do not regularly use it in the first place. Other commenters also stated that drivers will not use the provision more often. The National Association of Small Trucking Companies said that the only reason for a change in the frequency of use would be if a truck driver began working in a new region. A motor carrier argued that driver behavior, in terms of making the decision whether to use the exception or the frequency of use often to use the exception, will not change because the definition of “adverse driving conditions” remains unchanged.

FMCSA Response: FMCSA does not believe the changes adopted today are likely to increase significantly the use of the exception, but is unable to estimate changes in the frequency on an industry-wide level. The change provides drivers with a better opportunity to use the additional driving time already allowed under the current rule such that the adverse conditions that necessitate driving beyond the 14th-hour of the work shift may be addressed provided the driver can reach an appropriate stopping point without exceeding 13 hours of driving time.

Definition of Adverse Driving Conditions; Driver and Dispatcher Knowledge. The NPRM asked for public comment about potential modifications

or additions to the definition of “adverse driving conditions.” Commenters asked for both a broader definition, as well as a more specific definition.

More Detailed Definition. OOIDA, TruckerNation, other industry associations, and motor carriers said the definition should be expanded to include all unpredictable conditions that a driver may face, such as traffic congestion, vehicle accidents, construction, or road closures. Multiple commenters and drivers said the proposal should specifically define adverse driving conditions to embrace non-weather conditions, including Federal and State safety inspections, unexpected loading or unloading issues at shippers and receivers, and truck breakdowns.

Schneider National Carrier, Inc. recommended that the adverse driving conditions exception be available to drivers only once per week. Schneider added that the exception should not be allowed to be combined with the use of the split sleeper berth option or the proposed split-duty provisions. The American Moving and Storage Association recommended also allowing carriers to use the adverse driving conditions exception for conditions known before dispatch.

TruckerNation suggested requiring an option on an ELD for a driver to upload evidence or a detailed annotation to establish and document adverse driving conditions.

Road Safe America, the Trucking Alliance, ATA, Advocates, a few industry associations and motor carriers said that the definition should be clarified, but not expanded. Advocates and Uline believe adverse driving conditions should be defined as accurately and narrowly as possible, and that the situations under which the exception may be used should be clarified to minimize abuse. ATA conducted a survey of its members, some of whom said that “adverse” should be narrowly defined to include only Federal or State declared emergencies, while others favored the inclusion of all unforeseen road conditions.

Broader Definition. OOIDA recommended replacing the term “adverse” with “unforeseen” to be more encompassing. The U.S. Chamber of Commerce proposed a definition in which “adverse driving conditions” would be any conditions which could not be predicted at the time of dispatch, thereby granting flexibility to both drivers and dispatchers. A few industry associations recommended that FMCSA expand the definition to include

specific provisions for livestock haulers. CVSA recommended making the definition like the Canadian federal definition.

Under the current definition, adverse driving conditions must not have been known to the dispatcher when the run began. The Agency asked whether the driver’s lack of knowledge should be used as a precondition for the exception. FMCSA also asked whether the requirement for lack of advance knowledge at the time of dispatch should be eliminated.

Multiple commenters, including OOIDA, ATA, and motor carriers, said the driver knows the status of road conditions better than a dispatcher could, so the driver should be responsible for making safety decisions. TruckerNation stated that advance knowledge should not be a requirement and that, as with all safety decisions, discretion should be left to the driver. ATA acknowledged that dispatchers may be aware of adverse driving conditions before drivers, so dispatchers should continue to notify drivers.

OOIDA and the Association of American Railroads and the American Short Line and Regional Railroad Association said the requirement for the lack of advance knowledge at the time of dispatch should be eliminated because it prevents drivers from using the provision if road conditions change after dispatch.

No Changes. Other commenters, including IBT, California Highway Patrol, and the Truckload Carriers Association, recommended that there be no changes to the current definition.

FMCSA Response: FMCSA declines to make the definition applicable to specific sectors of the industry or to cover situations not contemplated by the current definition. The Agency also declines to exclude situations currently covered. Many of the suggested expansions would be covered under a reasonable interpretation of the current definition; inconsistent interpretations might be addressed best by training and further outreach efforts. Although the Agency does not believe the current definition is vague, it nonetheless has revised the definition for enhanced clarity.

Agency guidance concerning the exception makes clear that it covers only situations that occur after a driver started her or his trip.¹⁷ This final rule does not deviate from that principle. The exception does not cover detention time, breakdowns, or enforcement

¹⁷ See Interpretations under the HOS rules, § 395.1, <https://www.fmcsa.dot.gov/regulations/title49/part/395>.

inspections—factors that are to be anticipated in the industry. Nor does it cover things such as road construction or detours except when they could not reasonably be known before the driver started driving, such as accidents that significantly interfere with traffic movement.

The exception is mainly meant to cover situations outside a driver or motor carrier's control, and the Agency does not expect it to be invoked frequently. Thus, the Agency declines to limit its use to a fixed frequency or in combination with unrelated provisions of the HOS regulations or to expand on the current industry practice of documenting use of the exception on a driver's RODS.

However, the Agency believes clarification is appropriate given the common availability and use of technology that can provide motor carriers and drivers notice of adverse weather (and sometimes road) conditions. The definition has been revised somewhat to recognize that drivers on the road can evaluate situations that could not be foreseen before dispatch or the start of a duty day (or after a sleeper berth period). As revised, the definition covers conditions that are unknown, or could not reasonably be known, to the driver immediately before the start of the duty day or before resuming driving after a sleeper berth break, or to the motor carrier immediately before dispatching the driver. FMCSA believes that this change to the definition will lessen the need for future regulatory guidance. Furthermore, this change will not increase available driving time beyond what is currently allowed by the exception.

5. 30-Minute Break

NPRM. FMCSA proposed to require a 30-minute break if more than 8 consecutive hours of driving (instead of 8 hours after coming on-duty) has passed without at least one 30-minute change in duty status. This would allow any 30 minutes of non-driving time to qualify as a break, *i.e.*, on-duty (not driving) time, off-duty time, or sleeper berth time. Many drivers have interruptions of their driving time during normal business operations, such as loading or unloading a truck, completing paperwork, or stopping for fuel.

Under the current rules, the break is: (1) Required to be off-duty time during which no work, including paperwork, may be performed, and (2) triggered after 8 hours on-duty time, regardless of the time spent driving. The flexibility provided by the NPRM would have

allowed these normal breaks from driving to count as an interruption of the 8 hours of driving status (*i.e.*, "time on task" in the research literature), provided the break lasts at least 30 minutes. The proposed changes to the 30-minute break provision would not have allowed an increase in maximum driving time during the work shift or driving after the 14th hour from the beginning of the work shift.

The NPRM sought information and data on the impacts of changing the 30-minute break provision, in part to better assess its potential costs and benefits. Specifically, the Agency asked:

- Would you take fewer total breaks from driving with this change? How many and when would those breaks have occurred during your route?
- Do you expect to still take a 30-minute break if you have less than 8 hours of drive time? If so, would you take that break on-duty or off-duty?
- If you no longer need to take a 30-minute break, how would you expect to spend this additional time?
- How would this provision change your scheduling and planning?
- Do you expect to drive more miles or hours based on this change? Do you expect to be able to complete additional "runs"?

Additionally, the Agency acknowledged that many commenters to the ANPRM specifically asked that the 30-minute break requirement be eliminated entirely and considered that as an alternative under E.O. 12866. However, the NPRM said that, without the benefit of further information, it would not be appropriate to eliminate the 30-minute break. Given that the flexibility allowed in the proposal would alleviate many of the concerns expressed by commenters, in the NPRM FMCSA sought further information on the effect of eliminating the break requirement altogether. Specifically:

- (1) What would be the safety impact of eliminating the required break, potentially allowing up to 11 consecutive hours of driving?
- (2) What has been the cost to your company of complying with the 30-minute break rule since the compliance date for that rule, July 1, 2013?
- (3) How often do work shifts require an individual to drive more than 8 hours without at least a 30-minute change in duty status?
- (4) Would eliminating the break requirement result in greater cost savings than the current proposal? If so, what would be the amount of these cost savings?

Commenters Supporting the Proposed Revision. Numerous commenters, including individual commenters,

drivers, and some industry associations, supported the proposed changes for a variety of reasons, among them:

- Increased driver control and flexibility;
- Shortened on-duty hours, reducing fatigue;
- Increased control over break-time activities (*i.e.* using the break to load or fuel);
- Simplified implementation; and,
- Short-haul trip benefits.

Several commenters said, counterintuitively, that the 30-minute break made them more tired. The implication of such arguments seems to be that the focus on driving creates tension, which dissipates when drivers stop. Having relaxed against their will for 30 minutes, drivers may then find it difficult to recover their previous intensity, which feels to them like exhaustion—but does not have that effect. Virtually all commenters argued that the 30-minute break did not improve safety, and some even asserted that increases in CMV crashes and fatalities in recent years are attributable to counter-productive regulations like the 30-minute rule.

ATA described new research that the association believed suggested that there is additional benefit relative to an on-duty break. The Trucking Alliance and CVSA also said that a 30-minute on-duty break would not decrease safety for drivers needing a break.

The International Food Service Distributors Association stated that, in some cases, the proposal would allow food-service distributors to add additional stops to a route, maximizing efficiency and reducing traffic.

FMCSA Response: The Agency agrees with the commenters that the 30-minute off-duty break generates pressure as drivers attempt to keep on schedule. Under certain circumstances, it may even push them to drive more aggressively than they would otherwise have done in the latter half of the 14-hour driving window, despite the fact the total driving time up to that point may have been limited by a variety of factors.

Identifying causal connections between particular rules and safety outcomes is difficult, many factors play a role in most crashes, and separating their individual contribution is often impossible. The best evidence on the effect of breaks is provided by the 2011 Blanco study, discussed in the NPRM and elsewhere in this rule.¹⁸ While

¹⁸ "The Impact of Driving, Non-Driving Work, and Rest Breaks on Driving Performance in Commercial Motor Vehicle Operations." Blanco, 2011. Available in the docket for this rulemaking.

industry will be essential for an effective roll-out, the Agency has also developed a plan and corresponding materials that will be disseminated now that the final rule has been published.

Comments on Harmonization of U.S. and Canada, and Inconsistent State HOS Regulations.

A few commenters suggested reviewing and considering other HOS regulations, particularly those of Canada and Texas. An anonymous commenter noted that: "In Canada, we are allowed 13 hours of total driving time and 14 hours of total on-duty time within a 16-hour daily clock. Additionally, to reset our daily 16-hour clock we only need 8 hours of continuous off-duty or sleeper berth time, however we are required to have 10 hours of total off-duty time within the daily 24-hour clock. The additional two hours of required off-duty time can consist of 30-minute increments of off-duty periods throughout the day."

In responding to FMCSA's proposed 3-hour pause in the duty day, CVSA noted that "the maximum work shift [in Canada] for a driver is 16 hours, rather than the U.S. 14-hour rule. Therefore, CVSA suggests that FMCSA consider 2 additional hours, as opposed to 3 hours, to align with the Canadian HOS requirements. The alignment would make it easier for the motor carrier industry to comply with the HOS regulations in both countries, streamlining operations for the entire transportation supply chain and would provide a uniform ELD solution for cross-border operations which would make it easier for roadside safety inspectors to enforce."

An individual summarized the Texas HOS rules as "No required 30-minute breaks. 12-hour drive time 15 hour on-duty time. 8-hour sleeper berth or off-duty. I believe this will help with fatigued drivers and allow drivers to drive when they feel comfortable and not when the log book says they have to go." One commenter who transports placardable quantities of hazardous materials complained that California allows only 10 hours of driving time for operations in intrastate commerce. He argued that all States should be required to adopt Federal HOS limits. ABA also commented in support of FMCSA rest break standards invalidating all State and local standards by field preemption, asserting the importance of uniformity in the transportation and shipping industries.

Other commenters, including drivers and industry associations, suggested adopting different HOS rules for major sectors of industry, such as team operations, oversized freight, and

agricultural transportation, especially livestock.

Supporters of team operations generally favor splitting sleeper berth time into two 5-hour segments to allow drivers to trade places every few hours and keep the CMV moving. Oversized and overweight cargo is often transported on special vehicles that move slowly. The HOS limits can therefore create problems for these operations.

Agricultural interests that commented on the NPRM emphasized the perishability of livestock. The American Veterinary Medical Association stressed the need to avoid longer transit times, especially through mandatory stops when animals in crowded trailers can experience heat stress. The National Pork Producers Council (NPPC) generally supported the changes proposed in the NPRM, though it preferred a 6-hour, rather than a 7-hour, sleeper berth period. However, the NPPC also argued that the distinction between the 14-hour driving window and the 11-hour drive-time limit should be eliminated. "Work is work, and if a driver can be on-duty then the driver should be free to continue driving if they feel comfortable." The NPPC argued that a 14-hour driving limit is consistent with rules in Canada and Australia, as well as the intrastate rules of California and Texas.

FMCSA Response: The commenters who suggested adopting Canadian HOS limits or the Texas rules applicable to intrastate commerce offered nothing beyond their opinion that these regulations are preferable to the Federal limits adopted today.

Motor carrier operations in Canada and the U.S. differ in important ways. While trip lengths may be comparable, traffic density in Canada is much less and weather conditions are more challenging. Longer Canadian driving limits and reduced off-duty times are geared to those operating conditions. In fact, Canada has special HOS regulations for its far northern regions that are not applicable to the rest of the country. (Similarly, the FMCSA has different HOS rules specific to Alaska, 49 CFR 395.1(h).) The Canadian rules appear to be every bit as complex as U.S. rules. Adopting some or part of them would entail a major re-training effort, not only for the clear majority of U.S. drivers unfamiliar with Canadian rules, but also for the State enforcement agencies that would have to revise their regulations and databases and then retrain all their officers. The CVSA suggestion to (partially) harmonize U.S. and Canadian rules by adopting a 16-hour driving window is not feasible,

given FMCSA's decision not to go forward with a 3-hour pause in the driver's duty day. The NPRM did not propose to adopt any portion of the Canadian HOS rules, and the Agency therefore cannot do so as part of this rulemaking.

Both the Texas and California intrastate HOS rules cited by commenters are consistent with the variances from the FMCSRs allowed by § 350.341. In implementing the MCSAP in the late 1980s, the Federal Highway Administration, FMCSA's predecessor agency, allowed State regulations for intrastate operations to remain less than fully "compatible" with the FMCSRs, providing the States were making progress toward "compatibility," *i.e.*, national uniformity. However, in 1991 Congress directed that these "tolerance guidelines" with their intrastate variances be made permanent.⁵⁷ Like most States, Texas has availed itself of the variances allowed by § 350.341 to adopt standards for intrastate commerce that are less stringent than the FMCSRs, but California's more stringent driving-time limit is also within its authority. The NPRM proposed no changes to the MCSAP variances and none are adopted today.

The Agency notes that industry representatives have occasionally stated that they believe the Agency follows a "one-size-fits-all" regulatory approach, even though the FMCSRs make special provision for a wide variety of motor carrier operations. Some of these provisions are based on statute, but many were adopted by the Agency to accommodate the needs of particular segments of the industry. The current rulemaking generated additional requests for segment-specific HOS rules. No such rules were proposed and none are adopted today. However, many of the requests have been addressed in other contexts or by other authorities.

Oversize and overweight cargo is often eligible for special State permits, some of which include time limits (*e.g.*, no nighttime operations). Although parking these combinations may be difficult, careful route planning can minimize, if not avoid, such problems. In any case, FMCSA has no authority to address parking shortages, and does not believe that extended driving hours are a reasonable solution to the problems inherent in moving unusual cargo.

Supporters of team operations often argue that drivers should be allowed to split their sleeper berth time into 5-hour segments, separated by 5-hour driving

⁵⁷ Intermodal Surface Transportation Efficiency Act of 1991, Public Law 102–240, 4002(l), 105 Stat. 1914, 2144, 1991.

stints. While such a rule would keep the vehicle on the road almost continuously, its implications for safety are far from ideal. Drivers' circadian rhythms would inevitably be scrambled as their 5-hour rest periods rotate around the clock. Even if 5-hour rest periods were theoretically as restorative as the sleeper berth option adopted today, obtaining quality rest in a moving vehicle is problematic. FMCSA is aware of no research demonstrating that splitting sleeper berth time into continually repeated 5-hour segments ensures adequate rest. This final rule therefore adopts the sleeper berth requirements proposed in the NPRM.

The transportation of livestock poses unique challenges, and consequently receives specialized treatment. Congress has exempted drivers hauling livestock from the required 30-minute break.⁵⁸ Drivers hauling livestock who qualify for the statutory "covered farm vehicle" exception in § 390.39 are completely exempt from the HOS rules and many other parts of the FMCSRs. The more limited statutory provision for the transportation of "agricultural commodities" in § 395.1(k)(1) exempts drivers from the HOS regulations while operating within a 150 air-mile radius of the "source" of livestock and other commodities. Even if animals are being transported a substantial distance, the exempt radius gives drivers about a 3-hour addition to the normal 11-hour driving limit. Finally, Congress has prohibited the use of Federal funds to enforce the ELD requirements against transporters of livestock.⁵⁹ The 14-hour driving limit proposed by the NPPC is far beyond the scope of this rulemaking and will not be addressed. In any case, longer hours are not the only solution to the transportation of animals. For example, livestock transporters seem to make little use of team drivers to address the problems they have identified.

VII. Discussion of the Final Rule

A. Short-Haul Operations

In this final rule, FMCSA adopts most of the changes proposed in the NPRM, including extending the maximum allowable workday for short-haul property- and passenger-carrying CMV drivers from 12 to 14 hours to correspond with the 14-hour period requirement for property drivers, and extending the existing distance

restriction from 100 air-miles to 150 air-miles to be consistent with the distance limitation for short-haul drivers that are not required to possess a commercial driver's license.

Drivers and carriers using the short-haul exception are not required to use a RODS or ELD or take a 30-minute break. This extra time in the driving day has always been available to drivers, if they opted out of the short-haul exception. This change allows drivers to retain that status while receiving regulatory relief.

B. Adverse Driving Conditions

FMCSA adopts the proposed changes concerning the adverse driving exception. A driver who encounters adverse driving conditions is allowed up to a 16-hour driving window (for property carriers) within which to complete up to 13 hours of driving, or a 17-hour duty period (for passenger carriers) within which to complete up to 12 hours of driving.

In addition, FMCSA also modifies the definition of "adverse driving conditions," to clarify the role of the driver in determining when such conditions are identified:

Adverse driving conditions means snow, ice, sleet, fog, or other adverse weather conditions or unusual road or traffic conditions that were not known, or could not reasonably be known, to a driver immediately prior to beginning the duty day or immediately before beginning driving after a qualifying rest break or sleeper berth period, or to a motor carrier immediately prior to dispatching the driver.

This addition of the driver to the definition makes it clear that the driver should be involved in the decision-making, which should lessen the need for regulatory guidance to explain the role of the driver in determining when the conditions are identified. The changes to the other parts of the definition, including referring to the duty day, qualifying rest breaks, and sleeper berth period, simply update the definition and reflect the changes and updates to the HOS regulations, rather than using informal terminology ("the run"). The Agency declines to expand the circumstances covered by the definition.

C. 30-Minute Break

FMCSA adopts the proposed change linking the mandatory break to cumulative driving time rather than on-duty time, and allowing an on-duty-not-driving break of at least 30-minutes, to satisfy the requirement.

The Agency notes that many CMV drivers interrupt their driving time during normal business operations, such

as loading or unloading a truck, completing paperwork, or stopping for fuel. Before this final rule, the break was required to be off-duty, during which no work, including paperwork, could be performed and was triggered after 8 hours, regardless of driving time. However, the changes to the 30-minute break provision do not increase the maximum driving time during the work shift or allow driving after the 14th hour from the beginning of the work shift.

The flexibility provided with this change will allow normal breaks from driving (*i.e.*, from "time on task" in the research literature) to satisfy the requirement, provided the break lasts at least 30 minutes.

D. Sleeper Berth

FMCSA adopts the proposal allowing a driver additional flexibility in taking two off-duty periods under the sleeper berth exception. One period must be at least 7 consecutive hours spent in the sleeper berth, paired with another period of at least 2 hours spent either in the berth or otherwise off-duty, if the two periods total at least 10 hours. When paired, neither qualifying period counts against the 14-hour driving window. (Prior to this final rule, the shorter period counted against the driving window.) Identical changes are made to a parallel provision applicable in the State of Alaska found in § 395.1(h).

E. Compliance Date for the Rulemaking

FMCSA believe that the flexibility provided by these changes will be beneficial to the motor carrier industry. A short effective date would therefore be ideal, however, there are other factors to consider. The Congressional Review Act (CRA) (5 U.S.C. chapter 8) requires a 60 day delay before a major rule, like this rule, can take effect. Additionally, the need for ELD manufacturers to update those systems that exceed the minimum requirements, and to train drivers and enforcement personnel must be considered.

FMCSA believes that an effective date 120 days after publication is appropriate, given the actions required for full implementation.

F. Appendix B to 49 CFR Part 385

Based upon this final rule, technical changes to the corresponding paragraphs listing acute and critical violations in 49 CFR part 385, Appendix B, VII. *List of Acute and Critical Regulations* are made.

VIII. International Impacts

The FMCSRs, and any exceptions to the FMCSRs, apply only within the

⁵⁸ Sec. 5206(b)(1)(B)–(C), Fixing America's Surface Transportation Act, Public Law 114–94, 129 Stat. 1312, 1537, Dec. 4, 2015.

⁵⁹ Sec. 131 of Title I of Division H of the Further Consolidated Appropriations Act, 2020, signed on December 20, 2019.

United States (and, in some cases, United States Territories). Motor carriers and drivers are subject to the laws and regulations of the countries in which they operate, unless an international agreement states otherwise. Drivers and carriers should be aware of the regulatory differences among nations in which they operate. Canada- and Mexico-domiciled drivers must ensure compliance with U.S. HOS requirements while they are driving in the U.S.

A driver domiciled in the United States may comply with the Canadian hours of service regulations while driving in Canada. Upon re-entering the United States, however, the driver is subject to all the requirements of Part 395, including the 11- and 14-hour rules, and the 60- or 70-hour rules applicable to the previous 7 or 8 consecutive days. In other words, a driver who takes full advantage of Canadian requirements may have to stop driving for a time immediately after returning to the U.S. to restore compliance with Part 395. Despite its possible effect on decisions a U.S. driver must make while in Canada, this interpretation does not involve an exercise of extraterritorial jurisdiction (62 FR 16379, 16424; April 4, 1997).

IX. Section-by-Section Analysis

This rulemaking seeks to provide additional flexibility under the HOS rules in a manner that does not compromise safety. Specifically, it (1) modifies the definition of “adverse driving conditions” and extends a driver’s driving window by up to two hours should adverse driving conditions be encountered; (2) expands the scope of the short-haul exception for drivers of property-carrying CMVs requiring a CDL and for passenger-carrying CMVs; (3) modifies the sleeper berth rule; and (4) amends the mandatory 30-minute break to give drivers subject to the rule less restrictive means of satisfying the requirement. Additional technical changes are made in this final rule. Changes to the regulatory text proposed in the NPRM are noted below.

A. Part 385—Safety Fitness Procedures

In Section VII of appendix B of part 385, the list of acute and critical violations, is modified to match changes made in part 395. Specifically, the references to § 395.1(h)(1)(i), (ii), (iii), and (iv) are modified to reflect the redesignations, and text addressing § 395.3(a)(3)(ii) is modified to reflect the substantive changes in the 30-minute rule. While the changes to this list were not included in the NPRM, their inclusion on the designation of acute

and critical violations are distinctly technical in nature; they simply update the list for purposes of clarity and comprehension to reflect regulatory changes made elsewhere in the rule.

B. Part 395—Hours of Service of Drivers

1. Section 395.1 (Scope of Rules in This Part)

In subparagraph (b)(1), FMCSA modifies the exception for drivers of property- and passenger-carrying CMVs encountering adverse driving conditions, allowing them to extend their respective driving windows by a maximum of 2 hours, consistent with the long-standing provision governing the extension of driving time. Other changes in this subparagraph are merely technical or clarifying.

In subparagraph (e)(1), FMCSA modifies the short-haul exception for drivers operating either property-carrying or passenger-carrying CMVs, under which time records can be used in lieu of ELDs or RODS, and supporting documents need not be submitted to the motor carrier. This final rule extends the scope of this exception from a 100- to a 150-air-mile radius from the driver’s normal work reporting location and extends the driver’s maximum workday from 12 to 14 hours, a period consistent with the general rule governing the maximum driving window applicable to drivers operating property-carrying CMVs. All short-haul drivers remain subject to the existing limit on hours spent driving—11 hours for drivers of property-carrying CMVs requiring a CDL and 10 hours for drivers of passenger-carrying CMVs. Other changes in this subparagraph are merely technical or clarifying. For example, specific references to the 14-hour duty window for drivers of “ready-mixed concrete delivery vehicles” are eliminated, given the expansion of the duty day for all short-haul drivers to 14 hours. Provisions previously found in § 395.1(e)(1)(iv), duplicating provisions limiting drivers’ hours under §§ 395.3 and 395.5, are eliminated as superfluous and to avoid redundancy.

In subparagraph (g)(1), FMCSA modifies the general sleeper berth exception for drivers of property-carrying CMVs who elect to use this exception. Specifically, the Agency replaces the requirement for 8 consecutive hours in the sleeper berth and 2 additional hours, either in the berth or off-duty, or some combination thereof, with a requirement for at least 7 (but less than 10) consecutive hours in the sleeper berth and at least 2 additional hours, either in the berth or off-duty or some combination thereof.

However, the two periods must total at least 10 hours, equivalent to the 10 off-duty hours required of drivers who do not use sleeper berths. Neither period counts against the driver’s 14-hour driving window. Other changes are clarifying or technical. For example, the provision authorizing a team driver to count time in the passenger seat while the CMV is moving toward his/her sleeper berth break is modified to allow up to 3 (rather than 2) hours in the passenger seat for consistency with the minimum hours required in the berth under this rule. Long-standing language omitted from the NPRM that required a driver using the sleeper berth exception to calculate available hours from the end of the initial break period, is restored in this final rule for clarity. Provisions previously found in paragraphs (g)(1)(i)(B) and (C) are eliminated as superfluous because these requirements are covered elsewhere in part 395. Finally, provisions in former § 395.1(g) specific to drivers of property-carrying CMVs operating in Alaska are removed and recodified in § 395.1(h)—addressing HOS requirements unique to that State.

In paragraph (h), FMCSA revises the HOS exception applicable to drivers of property-carrying CMVs in the State of Alaska. Provisions formerly found in § 395.1(g) specific to Alaska are recodified and consolidated in paragraphs (h), specifically in (h)(1)(ii) and (iii), including provisions addressing required off-duty periods and sleeper berth provisions. Provisions previously found in paragraph (g) that are eliminated because they are covered elsewhere are added here, given that CMV drivers in the State of Alaska are not covered by paragraphs § 395.3(a) and (b) (property-carrying CMVs) or § 395.5 (passenger-carrying CMVs). Although not proposed in the NPRM, language is also added to this paragraph to address how a driver using the sleeper berth exception calculates available hours from the end of the initial break period, consistent with provisions of paragraph (g). The changes are either technical or stylistic. For example, language proposed in the NPRM is modified to more closely track language in the current rules, and to make clear that, under § 395.1(h), neither rest period under the sleeper berth provision can exceed 10 hours. These changes are made for purposes of clarity; except as noted above, changes largely reflect language included in the NPRM.

2. Section 395.2 (Definitions)

FMCSA modifies the definition of “adverse driving conditions,”

eliminating certain language addressing conditions already covered, and modifying the applicable standard to encompass conditions “not known, or [that] could not reasonably be known” to clarify when the definition applies. Furthermore, rather than focus solely on the knowledge of the dispatcher, the definition is modified to reflect knowledge of either the driver or the motor carrier at applicable points in time.⁶⁰ Additional clarifying changes were made. For example, the word “immediately” is added to clarify the point in time that the applicable conditions must be known and the reference to “unusual road and traffic conditions” is modified to read “unusual road or traffic conditions” to clarify either scenario would qualify.

FMCSA also modifies the definition of “on-duty time” by updating paragraph (4)(iii) of the definition to align with § 395.1(g)(1)(i)(D) in this final rule.

3. Section 395.3 (Maximum Driving Time for Property-Carrying Vehicles)

FMCSA revises paragraphs (a)(2) and (a)(3)(i) to remove superfluous language and make stylistic changes, respectively. No substantive change is intended. In paragraph (a)(3)(ii), the Agency modifies the 30-minute break requirement to focus on extended consecutive driving periods rather than a driver’s time on-duty. Thus, a driver may not drive more than 8 hours without an interruption of at least 30 consecutive minutes. A driver may satisfy the 30-minute period by spending the time off-duty, on-duty (not driving), or in the sleeper berth, or any combination of these non-driving statuses. The specific reference to time in the sleeper berth is added for clarity. As before, drivers operating under the short-haul exception (§ 395.1(e)) are not subject to the 30-minute break requirement.

The Agency is not adopting the NPRM’s proposal to extend the driver’s 14-hour duty period by taking an off-duty break ranging from 30 minutes to 3 hours.

⁶⁰ In the NPRM, FMCSA posed a series of specific questions on the potential modification of the definition of “adverse driving conditions,” driven in large part by comments the Agency received to the ANPRM. Specifically, the Agency requested comment on whether the knowledge requirement ought to reside with the driver rather than dispatcher, whether the lack of knowledge at time of dispatch be eliminated, and whether the definition ought to encompass additional circumstances. See 84 FR at 44200, August 22, 2019.

X. Regulatory Analyses

A. E.O. 12866 (Regulatory Planning and Review and DOT Regulatory Policies and Procedures as Supplemented by E.O. 13563), and DOT Regulatory Policies and Procedures

The Office of Information and Regulatory Affairs has determined that this rulemaking is an economically significant regulatory action under E.O. 12866.⁶¹ Regulatory Planning and Review, as supplemented by E.O. 13563.⁶² It also is significant under DOT regulations because the economic costs and benefits of the rule exceed the \$100 million annual threshold and because of the substantial Congressional and public interest concerning the HOS requirements (84 FR 71714, Dec. 27, 2019).

An RIA is available in the docket. That document:

- Identifies the problem targeted by this rulemaking, including a statement of the need for the action;
- Defines the scope and parameters of the analysis;
- Defines the baseline; and,
- Defines and evaluates the costs and benefits of the action.

The RIA is the synthesis of research conducted specific to current HOS practices, stakeholder comments, and analysis of the impacts resulting from changes to the HOS provisions in this final rule.

Affected Entities

The changes in this final rule will affect CMV drivers, motor carriers, and, except as otherwise exempt under § 390.3T(f)(2). The HOS regulations apply to CMV drivers. FMCSA obtained driver count information, by carrier operation, from the Motor Carrier Management Information System (MCMIS), which includes information submitted to FMCSA by motor carriers the first time the carrier applies for a DOT number, and biennially thereafter. Table 3 displays the 2018 estimate of CMV drivers from MCMIS. With the current baseline annual number of 6,520,268 CMV drivers (478,184 passenger carrier CMV drivers and 6,042,084 property carrier CMV drivers), FMCSA then estimated the future baseline number of CMV drivers who will be affected by this final rule annually during the analysis period of 2020 to 2029. These future baseline projections were developed by

⁶¹ Executive Order 12866 of September 30, 1993. Regulatory Planning and Review. (58 FR 51735, October 4, 1993).

⁶² Executive Order 13563 of January 18, 2011. Improving Regulation and Regulatory Review. (76 FR 3821, January 21, 2011).

increasing the current baseline 2018 values consistent with occupation-specific employment growth projections obtained from the Bureau of Labor Statistics (BLS) Employment Projections program.⁶³ The BLS employment projections for the following standard occupational classifications were used:

BLS SOC 53–3021 (Bus drivers, transit and intercity)
BLS SOC 53–3022 (Bus drivers, school or special client)
BLS SOC 53–3032 (Heavy and tractor-trailer truck drivers)
BLS SOC 53–3023 (Light truck or delivery service drivers)

The occupational categories noted above do not overlap exactly with the entire population of CMV drivers who will be subject to this rule, primarily because there are some CMV drivers who operate vehicles over 10,001 pounds but do not specifically declare their occupation as being a bus or truck driver. However, as noted above, this does not mean that those drivers are not reflected in the baseline 2018 estimates of CMV drivers produced above. All CMV drivers, regardless of their occupational category, are included in the estimates. The occupational categories above represent approximately 3.6 million employees in 2018, and combined are used to forecast the future growth from 2018 through 2029 based on the BLS estimates of employees in those industries from 2018 through 2028.

BLS provides baseline 2018 values for the total number of employees in all of the occupational categories noted, as well as estimates for 2028. An annual compound growth rate for net overall growth in the total population of CMV bus drivers and CMV truck drivers was calculated from the growth in the number of employees in these occupations from 2018 to 2028 as projected by BLS. The projected net growth in total employment for BLS SOC 53–3021 (Bus drivers, transit and intercity) from 2018 to 2028 is 6.1 percent, which equates to a 0.598 percent annual compound growth rate. The projected net growth in total employment for BLS SOC 53–3022 (Bus drivers, school or special client) from 2018 to 2028 is 4.3 percent, which equates to a 0.426 percent annual compound growth rate. FMCSA then computed a weighted average annual compound bus driver growth rate of 0.472 percent for these two occupational categories. The projected net growth in

⁶³ U.S. DOL, BLS. Employment Projections Program. Table 1.2: Employment by detailed occupation, 2016 and projected 2026. Available at: <http://www.bls.gov/emp/ind-occ-matrix/occupation.xlsx>, last accessed October 29, 2018.